

Affidavit of the Petitioner herein

IN THE HIGH COURT OF JUDICATURE OF

AT

W.P. No. of

Between:

A.B.

... Petitioner

And

C.D.

... Respondent

I, Sri., S/o., Religion, aged years, occupation, R/o. and now having temporarily come down to, do hereby solemnly and sincerely affirm and state on oath as follows :-

1. That I am the Petitioner herein and as such I am well acquainted with the facts of the case.

2. I submit that is a part of Inam village of situated in Rural Mandal. It is a minor Inam covered by the provisions of Inams Abolition and Conversion into Ryotwari Act, It is submitted that my father late Sri. purchased the entire block of acres of from the original Inamdars of under a Registered Sale Deed dated for proper and valid consideration and he was put into possession of the said property.

3. I further submit that relating to the Inam lands of Sri., during his lifetime was constrained to file certain writ petitions and certain villagers and also filed certain writ petitions relating to lands. It is further submitted that in W.P. No. of and W.P. No. of appropriate directions were given to the Inams Deputy Tahsildar, to conduct an enquiry relating to grant of Ryotwari Pattas for lands and the said directions were confirmed in W.A. No. and of

4. I further submit that the 2nd Respondent herein had conducted a thorough enquiry and rejected the claim of the 3rd Respondent for grant of Ryotwari Patta relating to lands by his Order in proceedings S.R. No., IDT No. dated It is submitted that as per the family partition, myself and my brothers, and claimed Ryotwari Patta for a portion of the lands which are described below :-

Sl. No. Survey Nos Classification Extent

1. 2. 3. 4.

5. I also submit that for the rest of the properties of, the other family members of our family were granted a Ryotwari pattas. Thus for the aforesaid lands the 2nd Respondent has clearly declared that we are entitled to a Ryotwari patta but surprisingly, the 3rd Respondent preferred an appeal to the 1st Respondent impleading me alone as a party Respondent and thus the Appeal itself is incompetent and is liable to be dismissed.

6. I also further submit that the was declared as Inam Village in the year on the strength of the Judgment of this Hon'ble Court in A.S. No. by A.P. Gazette Publication dated The learned Asst. Settlement Officer already prepared the list of recognised Inamdars of the entire village on thorough enquiry block-wise including the Inamdars of In the list of the Inamdars of clearly shown by names of Sri. and Sri. It is submitted that the said fact was admitted by the 3rd Respondent before the 2nd Respondent. In the list prepared by the Asst. Settlement Officer as stated *supra* was given was given by the Mandal Revenue Officer (Rural) under certified copy of the same is an authentic and valid one. Hence that cannot be questioned by the 3rd Respondent knowingly well and admitted them as Inamdars of the and now just for the sake of appeal before the 1st Respondent wantonly denied the said fact.

7. I also further submit that one Sri. admitted the fact that he was the Manager of Inamdars of in his written statement in O.S. No. and through his letters dated and It is crystal clear that the Inamdars of have been cultivating the lands personally by engaging labour at their cost. The fact of issuance of demand notice of cist from Inamdar, by the then Village Munsiff of dated is suffice to prove the fact that the Inamdars were cultivating the lands personally, but it is no doubt a fact that the Inamdars were giving pieces of land to the Lessees, if they are solvent and on registered muchilikas only and the Inamdars at no point of time leased even a single cent of land without any registered muchilikas or registered deeds. The Notice dated of Sri. to and others are clear that the 3rd Respondent or any other person claiming any other part of the under the guise of unregistered takids cannot be relied on for granting of Ryotwari pattas as they are fabricated at the instance of or at the active connivance of Sri. and Sri. only taking their position as Karanams of village. Further, the unregistered takids do not prove the case of the 3rd Respondent for the reasons stated *supra*. It is submitted that the alleged tenants shown by the Sri. and Sri. openly expressly before the competent authority that they were never the tenants under the Inamdars of and their names are fabricated insertion of Sri. and Sri. to a mass wealth and to have wrongful gain and in order to knock away the property of Inamdars by influencing the officials and mis-representing the facts before the competent authority. Likewise, the registered mortgage deeds are also created as if executed by them. As it came to light that the said Sri. was known for fabrication of records in S.L.R. and other relevant records, raids have been conducted by the Competent Authority and also found in raids and fabricated

records etc., and also two criminal cases were registered against him. Hence, as it proves the contention of the District Collector about the mis-deeds crept in the S.L.R. i.e., the leftside column Pattedar itself is a fabricated introduction by the then Karanam who was in office at the time of Survey operations. So, the names mentioned in the S.L.R. as pattedars cannot be believable as tenants.

8. It is submitted that my father Late Sri., purchased the entire block of of for valid consideration from its lawful owners i.e., the Inamdars namely, Sri. and Smt. under a Registered sale deeds dated and took possession of the same and apart from that he has exercised his right over the lands by alienating certain pieces of lands to different parties and the learned Inams Deputy Tahsildar also granted Ryotwari pattas to the said purchasers and the tenants who executed registered Saswatha Muchilikas in favour of Inamdars are alone granted Ryotwari pattas for their 2/3rd share by apportionment giving remaining 1/3rd to the legal heirs of the deceased Sri., as per the partition enunciated in the decree and Judgment of O.S. No. on the file of the Court of the Principal Sub-ordinate Judge It is pertinent to note that the claim of 3rd and 4th Respondents herein has been rejected in S.R. No. 3/96 IDT No. after following due process laid down in law.

9. It is further submitted that so far all the findings given in all civil matters and the results in the respective cases are subject to the result of the enquiry of the Inams Deputy Tahsildar in disposing the claims in granting Ryotwari Pattas. It is pertinent to note that none of the rejected claimants as alleged tenants have proved that they are in possession of the property on the crucial dates i.e., 7-1-1948 or 14-12-1956 in any of the Civil cases and the present claimants also have not proved their possession on the above said crucial dates for the properties claimed by them under the alleged purchasers from of alleged tenants.

10. It is further submitted that my late father, Sri. claimed the entire extent of as Inamdar even before the Land Ceiling Tribunal but the 3rd Respondent herein making an attempt to mis-interpret the said statement of Sri. in highly objectionable one and unbelievable one.

11. It is also submitted that my father Late Sri. filed W.P. No. of on the file of this Hon'ble Court seeking appropriate directions to the Inams Deputy Tahsildar to enquire into the matter relating to and issue Ryotwari patta in his favour and pending the disposal of the said writ petition, he obtained an interim injunction restraining the Respondents from in any way alienating any portion of in the year and when the said injunction was in force as the said parties violated the orders of injunction, a contempt case was also filed and on unconditional apology tendered by Sri. and it was directed that all those sale deeds during the said period after issuing the injunction ought to be rescinded forthwith.

12. It is further submitted that Sri./Smt., 1st petitioner herein filed W.P. No. questioning an order of *status quo* in an Inam Appeal arising out of common judgment and this Hon'ble Court by order dated disposed off the W.P. with a direction to dispose off the appeal itself within months.

13. It is also further submitted that on the filing of the Appeal by the 3rd Respondent even in the month of, I filed a detailed counter. But the 1st Respondent without considering the contents of the counter directed to maintain the *status-quo* till the disposal of the said Appeal by his Order in Procs. Roc. No. dated The said order of the 1st Respondent is totally arbitrary, illegal and unconstitutional and is liable to be quashed on the following among other :-

GROUND

- (a) The order of the 1st Respondent dated is an arbitrary and illegal order for non-application of mind.
- (b) The 1st Respondent evidently had not at all gone through the detailed counter filed by the petitioner and absolutely there is no reference to any one of the contents raised by the petitioner.
- (c) The Appellate Authority ought not to have granted an order of *status-quo* despite the detailed well considered order passed by the 2nd Respondent dated
- (d) The 1st Respondent ought to have seen that there cannot be an order of *status-quo* in the absence of the brothers of the Petitioner,
- (e) It is also pertinent to note that an order of *status quo* is granted against the properties belonging to other family members without impleading those parties.
- (f) Thus the appeal itself is incompetent and on a such incompetent appeal passing such an order is illegal, arbitrary and without jurisdiction.
- (g) It is also pertinent to note that neither of the parties in the I.A. No. of in O.S. No. of on the file of the Court of the and parties herein.
- (h) And all other grounds which will be raised at the time of making the final submissions.

14. In the said circumstances, I have no other effective alternative remedy except to invoke the extra-ordinary jurisdiction of this Hon'ble Court, under Article 226 of the Constitution of India.

15. Earlier, I have not filed any Writ Petition, suit or appeal either before this Hon'ble Court or before any Court of Law or authority, regarding the subject matter of the present writ petition.

Under these circumstances, it is also just and necessary in the interests of justice, that this Hon'ble Court may be pleased to -

- (a) To issue a Writ of Certiorari or any other appropriate Writ, Order or direction, calling for the records relating to the proceedings Roc. No. dated issued by the 1st Respondent and quash the same as illegal, arbitrary and unconstitutional, being violative of Articles 14, 21 and 300-A of the Constitution of India, and also contrary to the provisions of

the and also in violation of Principles of Natural Justice ; and

(b) To suspend the operation of the proceedings Roc. No. dated issued by the 1st Respondent, pending the disposal of the above Writ Petition, and pass such other and further orders as this Hon'ble Court may deem fit and proper in the circumstances of the case, as otherwise I will be put to irreparable loss, grave suffering, great hardship, heavy injury and serious loss.

Solemnly affirmed at
on this the of
and signed his name in my presence.

Advocate

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